

KERALA STATE ELECTRICITY REGULATORY COMMISSION

NOTIFICATION

No.1/1/KSERC-2006/XIV

Dated, Thiruvananthapuram 9 May, 2006.

KERALA STATE ELECTRICITY REGULATORY COMMISSION (LICENSEES' STANDARDS OF PERFORMANCE) REGULATIONS, 2006

STATEMENT OF OBJECTS AND REASONS

In exercise of the powers under Section 181 (za) and (zb) and also under Section 86 (l) (i) read with Sections 57 and 59 of the Electricity Act 2003 (Act 36 of 2003) and all powers enabling it in that behalf, the Kerala State Electricity Regulatory Commission hereby frames the following Regulations.

REGULATIONS

The Kerala State Electricity Regulatory Commission hereby makes the following Regulations namely.-

CHAPTER I

GENERAL

1. Short title and Commencement.-(1) These Regulations may be called the "Kerala State Electricity Regulatory Commission (Licensees' Standards of Performance) Regulations, 2006".

(2) These Regulations shall be applicable to all Licensees engaged in distribution of electricity in the state of Kerala.

(3) These Regulations extend to the whole of the State of Kerala.

(4) They shall come into force with effect from 1-11-2006.

2. Definitions.-(1) In these Regulations, unless the context otherwise requires,

(a) 'Act' means the Electricity Act, 2003

(b) 'area of supply' means the area within which a licensee is authorized by his licensee to supply electricity

(c) 'Commission' means the Kerala State Electricity Regulatory Commission

(d) 'Consumer' means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under this Act or any other law for the time being in force and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the

works of a licensee, the Government or such other person, as the case may be.

- (e) 'Extra High Tension/Extra High Voltage' means the voltage exceeding 33000 volts under normal conditions
- (f) 'High Tension/High Voltage' means the voltage exceeding 650 volts but not exceeding 33000 volts under normal conditions
- (g) 'Licensee' means the Distribution Licensee.
- (h) 'Low Tension/Low Voltage' means the voltage that does not exceed 400 Volts under normal conditions

(2) Words or expressions used and not defined in these Regulations shall bear the same meaning as in the Electricity Act, 2003 or in absence thereof, the meaning as understood in the electricity supply industry. In case of inconsistencies the meaning assigned to in the Act shall prevail.

CHAPTER II

STANDARDS OF PERFORMANCE

3. Standards of Performance.-(1) The Standards of Performance specified shall be the minimum standard of service with reference to quality, continuity and reliability of services that a licensee shall achieve in the discharge of his obligations as a licensee.

(2) Standards of Performance specified in Schedule I relates to Standards of Performance for which consumers are eligible for payment of an amount in the manner provided in the Schedule I in case the Licensee fails to achieve the Standards of Performance.

(3) Schedule II relates to Overall Standards of Performance, which indicates the level of performance the Licensee shall achieve.

4. Powers to modify.- The Commission may from time to time add, alter, vary, modify or amend the contents of the Schedule I and II

5. Exemption.- (1) The Standards of Performance specified in these regulations shall be kept in abeyance by the Commission during Force Majeure condition such as war, mutiny, civil commotion, riot, flood, cyclone, lightning, earthquake or other force or cause beyond the control of the Licensee and strike, lockout, fire affecting the licensees' installations and activities.

(2) The Commission may by a general order issued for the purpose and after hearing the Licensee and the affected consumer group release the Licensee from the liability to compensate the consumers for any default in the performance of any standard if the Commission is satisfied that such default is for reasons other than those attributable to the Licensee and further that the Licensee has otherwise made efforts to fulfill his obligations.

CHAPTER – III

PAYMENT OF AMOUNT

6. *Payment of amount.*- (1) The Licensee shall register every complaint of a consumer at the designated office and intimate the complaint number to the consumer.

(2) The Licensee shall maintain relevant records regarding the Standards of performance in a consumer-wise manner in order to give a fair treatment to all consumers and avoid any dispute regarding violation of standards.

(3) If the Licensee fails to meet the Standards of Performance specified in Schedule I, the licensee shall pay to the affected consumer, an amount as indicated against each of the Standards of Performance in Schedule I.

(4) All payments shall be made by way of adjustment against existing, current and/or future bills for supply of electricity.

7. *Procedure for payment of amount.* - (1) (a) The consumer has to bring to the notice of the Licensee that the Standards of Performance has been violated and accordingly claim the amount from the Licensee. The Consumer shall submit the claim for amount in application in Form A (Enclosed).

(b) Time limit for filing petitions is within 7 days of occurrence of the incident which give rise to a claim.

(2) The Licensee shall take a decision on the amount of claim of the consumer and if found liable shall pay the amount to the consumer within 90 (ninety) days from the date of receipt of application.

(3) In the event of the consumer not being paid the amount within the prescribed time the affected consumer may make an application with the Consumer Grievance Redressal Forum, established by the Licensee in terms of Section 42 of the Act, the Ombudsman and thereafter to the Commission.

CHAPTER – IV

FURNISHING INFORMATION, ISSUE OF ORDERS

8. *Information on Standards of Performance.* -(1) As per Section 59(1) of the Act, every Licensee shall furnish the following information to the Commission,

(a) The level of performance achieved in respect of matters covered in Schedule I and II of these Regulations, quarterly, except items in Sl.No. 16, 17 and 19 of Schedule II, the information of which shall be furnished monthly.

(b) The number of cases in which amount was paid under these Regulations and the amount in each case, quarterly

(2) The Commission shall arrange for publication of the above information, at least once in an year, in the manner as deemed fit.

9. Issue of orders and practice directions.-(1) Subject to the provisions of the Electricity Act, 2003 and these Regulations, the Commission may, from time to time, issue orders and practice directions in regard to the implementation of the Regulations and Procedures to be followed.

10. Power to remove difficulties. -(1) If any difficulty arises in giving effect to any of the provisions of these Regulations, the Commission may, by general or special order, direct the Licensee to do anything not being inconsistent with the provisions of the Act, which appears to it to be necessary or expedient for the purpose of removing the difficulties.

(2) The Licensee may make an application to the Commission and seek suitable orders to remove any difficulty that may arise in implementation of this Regulation.

11. Savings.-(1) Nothing in these regulations shall affect the rights and privileges of the consumers under any other law including the Consumer Protection Act, 1986 (Act 68 of 1986)



By Order of the Commission

Sd/-
Ajitha.S
Secretary



SCHEDULE - I**STANDARDS OF PERFORMANCE AND AMOUNT TO BE PAID
TO CONSUMERS FOR DEFAULT IN EACH CASE**

Nature of Service	Standards of Performance (Indicative Maximum time limit for rendering service)	Amount payable to affected consumer
<u>1. Normal Fuse-off Call</u> * Cities and Towns	Within 6 hours of recording of complaints with licensee.	Rs.25 in each case of default
Rural areas	Within 24 hours of recording of complaints with the licensee.	Rs.25 in each case of default
<u>2.Line Breakdowns</u> * Cities and Towns	Within 12 hours	Rs.25 to each affected consumer
Rural areas	Within 24 hours in all cases	Rs.25 to each affected consumer
<u>3. Distribution Transformer Failure</u> * Cities and Towns	Within 24 hours of reporting of failure of transformers.	Rs.25 to each affected consumer
Rural areas	Within 48 hours of reporting of failure of transformers	Rs.25 to each affected consumer
<u>4. Period of Scheduled outages</u> Maximum duration in a single stretch	Not to exceed 12 hours	Rs.25 to each affected consumer
Restoration of supply	By 6 PM on any day	Rs.25 to each affected consumer
<u>5. Meter Complaints</u> Inspect and check correctness	Within 30 days	Rs.10 in each case of default
Replace slow, creeping or stuck meters	Within 30 days	Rs.10 in each case of default

Replace burnt meters if cause not attributable to consumer	Within 7 days of receipt of complaint	Rs.10 in each case of default
Replace burnt meters in all other cases	Within 24 hours of payment of charges by consumer	Rs.10 in each case of default
<u>6. Application for new connection/additional load</u> Release of supply where service is feasible from existing line without system Deviation. (Weatherproof connection only)	Within one month of receipt of application in complete shape and remittance of CD & connection charges. As per Supply Code	Rs.50 for each day of default
Release of supply where, extension of line. Network expansion/ enhancement required for providing connection.	As specified by the Commission in the Kerala Electricity Supply Code, 2005.	Rs.50 for each day of default in Case of LT and Rs. 50 for each day of default in case of HT.
7.Erection of sub-station for release of supply	As specified by the Commission in the Kerala Electricity Supply Code, 2005. This will be applicable in the case of applicants who have remitted cost as per section 46 of the Electricity Act.	Rs.100 for each day of default
8. Transfer of ownership and Change of category	Within 14 days of receipt of application in complete shape.	Rs.50 for each day of default
9. Conversion of LT single phase to LT three phase service connections.	Within 30 days from the date of payment of charges if no additional line or substation is involved.	Rs.50 for each day of default
10. Conversion from LT to HT if HT line is involved, if transformer substation is involved.	As per Kerala Electricity Supply Code 2005	Rs.50 for each day of default

11.Resolution of complaints on consumers' Bills If no additional information is required	Within 24 hours of receipt of complaint	Rs.25 for each day of default
If additional information is required	Within 7 days of receipt of complaint	Rs.25 for each day of default
12. Reconnection of supply following disconnection Towns and cities	On the same day	Rs.50 for each day of default
Rural areas	Within 24 hours of receipt of payment from consumer	Rs.50 for each day of default
13. Payment of Exgratia in case of electric accidents Cases where it is established beyond doubt that the accident is not due to the fault of the victim	Within 30 days without waiting for the report from CEIG	Rs.50 for each day of default
In other cases	Within 30 days after receipt of report from CEIG	Rs.50 for each day of default
14. Refund of Deposits	Within 60 days after receipt of request and deposit receipt	Rs.50 for each day of delay

* For calculation of compensation 6 PM to 6 AM will not be considered as delay.

SCHEDULE - II

OVERALL STANDARDS OF PERFORMANCE

Service area	Standards (indicative Time Limit for rectification)	Overall Standards of Performance
<u>1. Normal fuse-off Calls</u> Cities and Towns	Within 6 hours	95 %
Rural areas	Within 24 hours	95 %
<u>2. Line Breakdowns</u> Cities and Towns	Within 12 hours	90 %
Rural areas	Within 24 hours	90 %
<u>3. Distribution Transformer Failure</u> Cities and Towns	Within 24 hours	90 %
Rural areas	Within 48 hours	90%
<u>4. Period of Schedules outages</u> Maximum duration in a single stretch	Not to exceed 12 Hrs.	98 %
Restoration of supply	By 6 PM on any day	98 %
<u>5. Voltage Variations</u> Where no expansion or enhancement of network is involved	Within 7 days	90 %
Where up-gradation or distribution system is required	Within 120 days	90 %
<u>6. Meter Complaints</u> Inspect and check correctness	Within 30 days	95%
Replace slow, creeping or stuck meters	Within 30 days	95%
Replace burnt meters if cause is not attributable to consumer	Within 7 days of receipt of complaint	95%
Replace burnt meters in all other cases	Within 24 hours of payment of charges by consumer	95%

<u>7.Application for new connection/ Additional load Connection feasible from existing network</u> Release of supply	Within 30 days of receipt of application along with prescribed charges	95 %
<u>8. Network expansion/ Enhancement required for providing connection</u> Release of supply (LT)	As specified in the Kerala Electricity Supply Code, 2005.	95%
Release of supply (HT) 11 KV supply	As specified in the Kerala Electricity Supply Code, 2005	95%
<u>9. Erection of sub-station for release of supply</u>	Within the time period as approved by the Commission	95 %
<u>10. Transfer of ownership and conversion of service</u> Title transfer of ownership Change of category	Within 14 days of receipt of application	95%
<u>11. Resolution of complaints on consumer's bills</u> If no additional information is required	Within 24 hours	99%
If additional information is required	Within 7 days	99%
<u>12. Reconnection of supply following disconnection</u> Cities and Towns	On the same day	99%
Rural areas	Within 24 hours	99%
<u>13. Payment of Exgracia in case of electric accidents</u> Cases where it is established beyond doubt that the accident is not due to the fault of the victim	Within 30 days without waiting for report from CEIG	98%
In other cases	Within 30 days after receipt of report from CEIG	95%
<u>14. Refund of deposits</u>	Within 60 days	95%
<u>15. Billing Efficiency</u>		99 % of the consumers to

		be billed during the billing cycle
16. Collection Efficiency: Metered Installations		95 per cent
17. Distribution Transformer failures Urban areas		Shall not exceed 5 per cent p.a.
Rural Areas		Shall not exceed 12 per cent p.a.
18. Faulty Meters		Shall not exceed 2.5 per cent of metered installations
19. Reliability Indices		City - 99.5 Town - 99.5 Rural area – 99



FORM A
APPLICATION FOR CLAIMING COMPENSATION
BY THE AFFECTED CONSUMER

1	Name of the Consumer	
2	Address	
3	Consumer Number	
4	Nature of complaint in brief	
5	Complaint Number	
6	Date and time of lodging complaint	
7	Date and time the complaint is attended to by the Licensee	
8	Standard time within which the complaint is to be attended to as per Licensees' Standards of Performance Regulations	
9	Actual Time taken to attend to the complaint	
10	Standard amount to be received as per Licensees' Standards of Performance Regulations	

Signature

Date:
Place:

ACKNOWLEDGMENT (To be given by the Licensee)

Claim Number:
Date

Name of the Consumer

Consumer Number

Claim for standard amount received on (Date)

Signature of the Official of the Licensee
with Name, Seal and Date